

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2018-1833

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF WALTER REVOAL, LICENSE NO. LPC 2103,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("the Board") and Walter Revoal ("Respondent") as follows:

1. Respondent was licensed to practice as a professional counselor ("LPC") in the State of Colorado on December 16, 1998, having been issued license number LPC 2103, and is currently so licensed.
2. The Board has jurisdiction over Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
3. This Order is a full and final resolution of case number 2018-1833. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent denies the following allegations, but acknowledges that if the Board were to prove the allegations at hearing, they would constitute a *prima facie* case of a violation of the Mental Health Practice Act, and would subject Respondent to discipline. The Board's allegations are as follows:
 - a. Respondent failed to comply with his Continuing Professional Development ("CPD") requirements during the 2015-2017 renewal cycle.
5. Although Respondent disputes the allegations in paragraph 4 above, Respondent admits that if the allegations were proven by the Board at hearing, Respondent would have violated sections 12-43-222(1)(b) and 12-43-605(1)(a), C.R.S., and Board Rule 18, which state:

12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 43 violates this article 43 if he or she:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article.

12-43-605. Continuing professional competency - board rules. (1)(a) In accordance with section 12-43-603, the board issues a license to practice professional counseling based on whether the applicant satisfies minimum educational and experience requirements that demonstrate professional competency to practice professional counseling. After a license is issued to an applicant, the licensed professional counselor shall maintain continuing professional competency to practice professional counseling.

Rule 18 - Continuing Professional Competence. Effective January 1, 2011, licensed professional counselors shall demonstrate continuing professional competence through participation and compliance with the Continuing Professional Development program in order to renew, reinstate or reactivate a license to practice professional counseling in the State of Colorado.

PERMANENT RELINQUISHMENT

6. Respondent hereby permanently relinquishes his LPC license and the right to practice as a professional counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept such relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board. Respondent agrees not to reapply for licensure as a professional counselor in the State of Colorado.

7. Following relinquishment of his LPC license, Respondent shall not perform any act requiring a license to practice at any time in the future.

8. Respondent also agrees not to register as a psychotherapist in the State of Colorado; nor will Respondent perform any act constituting psychotherapy as defined under section 12-43-201(9), C.R.S., at any time in the future.

TERMS AND CONDITIONS

9. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to section 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

10. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

11. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

12. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to section 12-43-224, C.R.S.

13. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

14. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

15. This Order shall be admissible as evidence at any hearing held before the Board.

16. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT



WALTER REVOAL
LPC 2103

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS



DARCIE MAGNUSON
Program Director

Effective this 14th day of September,
2018.